

Amendment Notice No. 1 to the Data Protection Compliance and Implementation Directive, 2026

Notice No. NDGC/AMD/2026/01 • Issued 4 June 2026 • Effective 1 July 2026

1. Authority and Effect

1.1 This Notice amends the Data Protection Compliance and Implementation Directive, 2026 (Directive No. NDGC/DIR/2026/01) ("the Principal Directive").

1.2 The amendments take effect on 1 July 2026. Obligations arising from events occurring before that date continue to be governed by the Principal Directive as it stood immediately before the amendment.

1.3 Except as amended by this Notice, the Principal Directive continues in full force.

2. Amendment to Article 6 - Breach Notification Period

2.1 Article 6(2) of the Principal Directive is amended by substituting "48 hours" for "72 hours".

2.2 Accordingly, with effect from 1 July 2026, a controller shall notify the Commission of a Material Breach not later than **48 hours** after becoming aware of the breach.

2.3 Article 6(3) is not amended, and the period for notifying affected data subjects remains 7 days.

2.4 Where a controller cannot provide complete information within the period in Article 6(2) as amended, it shall make an initial notification within that period and supply the outstanding information in phases within a further 72 hours.

3. Amendment to Article 4 - Filing Fees

3.1 Table 1 of the Principal Directive is amended as follows -

Tier	Annual filing fee before amendment (NGN)	Annual filing fee from 1 July 2026 (NGN)
Standard	100,000	100,000 (unchanged)
High Level (HL)	250,000	400,000
Ultra-High Level (UHL)	750,000	1,200,000
Extra-High Level (EHL)	2,000,000	3,500,000

3.2 A registration renewed before 1 July 2026 remains valid for its full twelve-month term at the fee paid.

4. Amendment to Article 4 - Behavioural Data Threshold

4.1 The EHL criterion in Table 1 of the Principal Directive is amended by substituting "50,000 data subjects" for "100,000 data subjects" in respect of biometric data and behavioural data.

4.2 A controller that becomes an EHL entity solely by reason of this amendment shall register under Article 5 within 90 days of 1 July 2026, rather than the 60 days otherwise applicable.

5. New Article 7(5) - Periodic Review of Impact Assessments

5.1 The Principal Directive is amended by inserting after Article 7(4) the following -

"(5) A DPIA carried out in respect of an automated decision system shall be reviewed and, where the system or its inputs have materially changed, repeated at intervals of not more than **12 months**. The controller shall record the date of each review and the conclusion reached."

5.2 A controller operating an automated decision system on 1 July 2026 shall complete its first review under Article 7(5) not later than 31 December 2026.

6. Repeal of Article 9(4)

6.1 Article 9(4) of the Principal Directive (deemed provisional approval of a Cross-Border Data Transfer Instrument where the Commission does not respond within 30 days) is **repealed**.

6.2 With effect from 1 July 2026, no CBDTI is treated as approved unless the Commission has issued a written determination. The 30-day service standard in Article 9(4) ceases to have effect and silence by the Commission does not constitute approval.

6.3 A CBDTI that became provisionally approved by operation of the repealed provision before 1 July 2026 remains valid until the expiry of its six-month provisional period, after which a written determination is required.

7. Amendment to Article 13 - Self-Reporting Discount

7.1 Article 13 is amended by inserting the following sub-Article -

"(5) Where a contravention is self-reported to the Commission before the Commission commences an investigation, and the controller has implemented remedial measures the Commission considers adequate, the remedial fee otherwise payable shall be reduced by 30 per cent."

8. Provisions Not Amended

8.1 For the avoidance of doubt, this Notice does not amend Article 11 (Compliance Audit Returns), Article 12 (Records of Processing Activities), Article 14 (Retention of Compliance Evidence) or Schedule 2 (DPO qualification).

8.2 The CAR filing deadline of 31 March is unchanged. The compliance evidence retention period of six years is unchanged.

Reader's note. Where this Notice and the Principal Directive state different figures for the same obligation, the figure in this Notice applies to conduct occurring on or after 1 July 2026 and the figure in the Principal Directive applies to conduct occurring before that date.